

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIGUEL ANGEL HERNANDEZ LOPEZ,

Petitioner

VS.

CAROLINA LOPEZ MURILLO,

Respondent

) Case Number: FDI-25-801503

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER REQUEST TO TRAVEL W/MINOR CHILD

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Miguel Lopez (Father) and Respondent Carolina Murillo (Mother) married on 2/14/2024. The parties agree they separated on 5/1/2025, for a marriage of 1 year and 3 months. The parties have one minor child, Angel (DOB: 10/16/2022, age 3).
- 2) Per the Amended Findings and Order After Hearing filed 9/8/2025, at the 9/3/2025 hearing, Judge Costin denied Mother's request for a Domestic Violence Restraining Order against Father, finding that Mother had not met her burden of proof. The Court ordered the parties to share joint legal and joint physical custody and for the parties to share parenting time on a 2-2-5-5 schedule.
- 3) Now on for hearing is Father's Request for Order filed 7/7/2026 asking the Court for authority to travel with Angel to Oaxaca, Mexico from 11/13/2026 to 12/18/2026. Father states the would like their son to spend time with family and interact with animals and nature. Father states he plans to stay at his house in Santa Catarina Quiane in Oaxaca Mexico. Father states he asked their son's daycare and was told it is OK for them to travel for the period of time. Father states Mother initially agreed to the trip, but changed her mind weeks later.

1 4) Per the Proof of Service filed 8/5/2026, Father's Request for Order, blank Responsive
2 Declaration, and Tentative Ruling Instructions were mailed to Mother on 8/4/2026.

3 5) Mother did not file a Responsive Declaration.

4 **B. Findings and Order**

5 1) Father's 7/7/2026 Request for Order was not served at least 16 Court days prior to the 8/11/2026
6 hearing date, as required by Code of Civil Procedure section 1005(b). Moreover, the parties need
7 to first attend mediation regarding Father's request.

8 2) The parties are ordered to attend mediation with Maya Ponce (with whom the parties have
9 attended a prior mediation session) on **Friday, 10/2/2026 at 9:00 AM.**

10 3) If the parties are unable to reach an agreement regarding Father's request to travel with the
11 parties' son to Mexico, the parties shall return for a hearing on this issue on **Tuesday, 10/13/2026**
12 **at 9:00 AM in Dept. 404.**

13 4) The Court will prepare the Findings and Order After Hearing.
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